

Melvin De La Cruz v. Inpatient Services of California, et al., 22CV-0667

Hearing: (1) Request for Sanctions Re: Motion to Compel Responses to Form Interrogatories, Special Interrogatories, and Request for Production of Documents

(2) Motion to Compel Plaintiff's Deposition

Date: August 12, 2026

Melvin De La Cruz (Plaintiff) is a physician who filed this action against Tenet Healthcare Corporation, and its formerly affiliated hospitals, Sierra Vista Regional Medical Center, and Twin Cities Community Hospital (collectively Tenet), Inpatient Services of California, Australian Salmon Inpatient Services (collectively Inpatient Defendants), and Envision Physician Services, LLC, alleging wrongful termination of his employment and of staff privileges at two hospitals.

Now before the Court are (1) Tenet's request for sanctions in connection with its motion to compel responses to discovery; and (2) Tenet's motion to compel Plaintiff's deposition. The motions will be granted in part.

I. Request for Sanctions in connection with Tenet's Motion to Compel Discovery Responses

On January 22, 2026, Tenet served on Plaintiff (1) Notice of Plaintiff's Deposition; (2) Special Interrogatories; (3) Form Interrogatories; (4) Requests for Production of Documents (RFPs); and (5) Requests for Admissions (RFAs). (Boniadi Dec., ISO Mot. to Compel Disc. Resps., ¶ 2.) On June 17, 2026, the Court held a hearing on Tenet's motion to compel responses to discovery and for sanctions. (Minutes, 6/17/26.) The Court granted the motion but continued Tenet's request for sanctions to August 12, 2026, and ordered Tenet's counsel to file and serve an updated declaration supporting the requested sanctions. (Ruling, 6/17/26.) On July 22, 2026, Tenet filed a further declaration of Susanne Boniadi. (Boniadi Suppl. Dec.).

Tenet moves for sanctions of \$6,280 against Plaintiff and his counsel under Code of Civil Procedure sections 2030.290, subdivision (c), 2031.300, subdivision (c), and 2033.280, subdivision (c). (Notice Mot., p. 2, ll. 16-18, Mot., p. 9, ll. 3-11.) Tenet's request is supported by an initial and supplemental declarations from Susanne Boniadi, its former counsel.¹ Ms. Boniadi declares her hourly rate is \$785. (Boniadi Suppl. Dec., ¶ 6.) Tenet seeks \$6,280 (8 hours) in fees in connection with the motion, including meet and confer emails (on March 3, 2026, March 16, 2026, and March 27, 2026), drafting the motion and documents in support, and preparing for the hearing. (*Id.*, ¶ 7.)

¹ The Declaration of Jeffrey Weston, filed on August 5, 2026, in support of the motion to compel Plaintiff's deposition indicates that Ms. Boniadi is no longer employed with the ArentFox Schiff LLP firm. (See Weston Dec. ISO Reply, ¶ 4, fn. 4.)

Ms. Boniadi declares her hourly rate “is consistent with the prevailing rates charged by attorneys of comparable skill, experience, and ability in the Los Angeles legal market for similar litigation matters.” (Boniadi Suppl. Dec., ¶ 6.) The declaration, however, does not establish the reasonableness of the requested hourly rate for San Luis Obispo County, nor does it detail Ms. Boniadi’s experience or qualifications to support that rate.

A party may retain an attorney from a city with billable rates that exceed the usual rate for legal service in the community where they have made a good faith but unsuccessful effort to find local counsel. (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 397-399 [higher out of town rate proper for lodestar calculation where party submitted declaration that he tried to find local counsel and was wholly unsuccessful].) Tenet provides no evidence that an attorney with similar experience or capabilities to Tenet’s counsel could not be found or retained locally. Thus, the Court finds that there is no basis for applying an hourly rate higher than those usually charged within this community. For purposes of this motion, the Court sets Tenet’s counsel’s hourly rate at \$400 per hour.

The Court will award a total of 8 hours, which includes: time for meeting and conferring, preparation of the motion and reply, and attending the hearing in the reduced amount of \$3,200 against Plaintiff and Mr. Khouri, jointly and severally, payable within thirty (30) days of this order. (Code Civ. Proc. §§ 2030.290, subdivision (c), 2031.300, subdivision (c), and 2033.280, subdivision (c). “The amount of monetary sanctions is limited to the ‘*reasonable* expenses, including attorney’s fees’ that a party incurred as a result of the discovery abuse. (§ 2023.030(a), *italics added*.) The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. [Citation.]” (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 791.)

II. Motion to Compel Plaintiff’s Deposition

Tenet filed a motion for an order imposing terminating sanctions against Plaintiff or alternatively an order compelling Plaintiff to appear for his noticed deposition, and for monetary sanctions. (Notice of Mot., p. 2, ll. 7-17.) Inpatient Services of California and Australian Salmon Inpatient Services (collectively “Inpatient Defendants”) filed a joinder requesting the imposition of terminating sanctions against Plaintiff and awarding the Inpatient Defendants monetary sanctions in the amount of \$3,639.00. (Notice of Joinder, p. 2, ll. 12-20.)

The Court notes, however, that Tenet has withdrawn its request for terminating sanctions and now requests an order compelling Plaintiff to sit for his deposition on or before October 2, 2026, and for monetary sanctions. (Reply, p. 4, ll. 19-23.) Plaintiff opposes. The motion will be granted in part.

A. Legal Standard.

Pursuant to Code of Civil Procedure, section 2025.450, subdivision (a):

If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.

(Code Civ. Proc., § 2025.450, subd. a.)

However, “[t]he motion shall be accompanied by a meet and confer declaration under Section 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance.” (Code Civ. Proc., § 2025.450, subd. (b)(2).)

B. The First Deposition

Ms. Boniadi represents that on January 22, 2026, Tenet served a notice of deposition and request for production of documents by email to Plaintiff's counsel, Michael J. Khouri, at his email address, mkhouri@khourilaw.com.² (Boniadi Dec., ¶ 2.) Plaintiff's deposition was scheduled for February 26, 2026. (*Ibid.*, Ex. A.) On February 25, 2026, Mr. Khouri emailed Tenet's counsel indicating that “he had received a ‘strange email from a court reporting agency about a deposition tomorrow’ and asserting that he did not have the deposition on his calendar and that it ‘cannot go forward.’ ” (*Id.*, ¶ 3.)

In response, Tenet's counsel, Jeff Weston recirculated the Notice of Deposition, which had been served on January 22, 2026. (Boniadi Dec., ¶ 3.) Mr. Khouri responded that he could not open it, never received it and asked whether it had been sent to his service email. (*Ibid.*, Ex. B.) Attorneys for Tenet and Inpatient Defendants appeared at the deposition on February 26, 2026. (*Id.*, ¶ 4.) Plaintiff and his counsel failed to appear at the deposition. (*Ibid.*) A transcript of the non-appearance was prepared by the certified shorthand reporter present at the deposition. (*Ibid.*, Ex. C.)

² A motion to compel discovery was heard and granted on June 17, 2026. The Court continued Tenet's request for monetary sanctions to August 12, 2026, which is addressed in this Ruling, above.

C. The Second Deposition

After the scheduled deposition on February 26, 2026, Mr. Khouri requested that Defendants propose dates for a deposition in April. (Boniadi Dec., ¶ 5.) Tenet's counsel proposed several dates and Mr. Khouri responded, " 'April 29 and 30 are good. You choose.' " (*Ibid.*, Ex. D.) Tenet noticed the deposition for April 30, 2026. (*Id.*, ¶ 6, Ex. E.) On April 28, 2026, "Mr. Khouri contacted Mr. Weston stating: 'Wait. This Thursday. I don't think I can make it.' Defendants' counsel responded: 'This is a date you proposed. So you and your client are not able to attend the deposition on Thursday? Please confirm so I can make arrangements on my end.' On April 29, 2026, Plaintiff's counsel confirmed that neither he nor his client would attend: 'Correct. I can[not] attend nor will my client.' When asked 'Is your client coming?' Plaintiff's counsel responded: 'No. I'm in trial.' " (*Id.*, ¶ 7, Ex. E.)

Plaintiff did not appear for the scheduled deposition, nor was a valid objection served. (Boniadi Dec., ¶ 8.) Tenet's counsel appeared, and a statement of non-appearance was taken. (*Id.*, ¶ 9, Ex. G.) In refusing to participate in discovery, Plaintiff caused substantial prejudice to Tenet. (*Id.*, ¶ 13.)

D. Discussion

In his opposition, Plaintiff asserts that Defendants contend he has refused to appear for his deposition. Plaintiff disputes this characterization and states that he is willing to attend a deposition. Mr. Khouri explains that due to trial commitments he was unavailable for the two depositions. (Khouri Dec., ¶ 2.) Additionally, Mr. Khouri is "undergoing a serious health issue" requiring surgery one week from July 30, 2026, and will be unable to travel by car until mid-September. (*Ibid.*)

Tenet responds that Plaintiff's opposition does not excuse his prior non-appearances. Tenet notes that it appreciates the difficulty caused by Mr. Khouri's health condition and remains "hopeful that the parties can cooperate to reschedule Plaintiff's deposition at a mutually convenient time when counsel has had an opportunity to recover around mid-September." (Reply, p. 3, ll. 10-12.)

As Plaintiff failed to object to or appear at his properly noticed depositions on February 26, 2026, and April 30, 2026, Plaintiff is ordered to appear for his deposition on or before October 2, 2026.

E. Sanctions

Where a motion to compel a party's appearance and testimony at deposition is granted, the court shall impose a monetary sanction in favor of the party who noticed the deposition and against the deponent, unless the court finds that the one subject to sanctions acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.450, subd. (g)(1).)

1. Tenet's Request for Sanctions

Based on Plaintiff's failure to appear at two properly noticed depositions, sanctions are warranted. Tenet requests \$5,000 for preparing the motion, and costs of \$1,560, in court reporting fees, in connection with Plaintiff's failure to appear. (Boniadi Dec., ¶ 14.) The declaration does not specify how the \$5,000 fee was calculated, the hourly rate or the number of hours expended.

However, as part of its reply, Tenet filed a supplemental declaration from its counsel, Jeffrey Weston. Mr. Weston declares that Ms. Boniadi, "a former associate of ArentFox Schiff LLP, was primarily responsible for corresponding with Plaintiff's counsel regarding the scheduling of his deposition, meeting and conferring regarding Plaintiff's non-appearance, and drafting the instant Motion." (Weston Dec., ¶ 4.) Mr. Weston declares that Ms. Boniadi's hourly rate was \$785 an hour and "Ms. Boniadi spent no fewer than 6.4 hours" on corresponding with Plaintiff's counsel, drafting the motion and supporting documents. (*Id.*, ¶¶ 5, 6.) Tenet also incurred "no less than \$1,560.00 in court reporter fees due to Plaintiff's failure to appear at two scheduled depositions...." (*Id.*, ¶ 8.)

As previously, because the Court finds that there is no basis for applying an hourly rate higher than the prevailing market rate in this community, the Court will reduce the hourly rate to \$400. The Court imposes \$3,160.00 (4 hours x \$400/hr., plus \$1,560) in monetary sanctions against Plaintiff, payable within thirty (30) days of this order. (Code Civ. Proc., § 2025.450, subd. (g)(1).)

2. Inpatient Defendants' Request for Sanctions

The Inpatient Defendants also request monetary sanctions in the amount of \$3,639.00 against Plaintiff and/or his counsel, Michael J. Khouri for preparing for Plaintiff's noticed depositions and for preparing the joinder and supporting declaration. (Notice of Joinder, p. 2, ll. 16-18, Hernando Dec., ¶ 13.)

"It is common practice for attorneys to join in another party's motion by simply filing a pleading captioned 'Joinder in Motion of ... for ...,' stating that the joining party adopts the requests and the points and authorities contained in the joined motion." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) ¶ 9:27, citing *Barak v. Quisenberry Law Firm* (2006) 135 Cal.App.4th 654, 660-661.) A joinder may be sufficient to join another party's motion, if it is deemed timely, presents evidence establishing "the necessary factual foundation to support the motion" and requests affirmative relief on behalf of the joining party. (See *Barak*, at pp. 659-662 [holding joinder in anti-SLAPP motion to strike seeking affirmative relief on behalf of joining party deemed proper]; *Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 719, citing *Frazer v. Seely* (2002) 95 Cal.App.4th 627, 636 ["The court erred in permitting the joinder, inasmuch as the notice of joinder was not timely served."].)

Code of Civil Procedure section 2025.450, subdivision (g)(2) provides:

On motion of any other party who, in person or by attorney, ***attended at the time and place specified in the deposition notice in the expectation that the deponent's testimony would be taken***, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of that party and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(Code Civ. Proc., § 2025.450, subd. (g)(2) [emphasis added].)

The Court finds that the Inpatient Defendants' joinder is timely, as it was served on May 21, 2026. The joinder is supported by the declaration of Inpatient Defendants' counsel, Andrea Poma Hernando. Ms. Hernando declares that she attended Plaintiff's scheduled depositions on February 26, 2026, and April 30, 2026. (Hernando Dec., ¶¶ 10, 11.) Additionally, because Plaintiff did not serve "any valid or timely objections to either noticed deposition", Ms. Hernando prepared for the depositions because she "expected that Plaintiff's deposition would be taken as noticed. (*Id.* ¶ 12.) The Court finds Inpatient Defendants' joinder sufficient to join Tenet's motion.

The Inpatient Defendants request \$3,639.00 in fees [2.0 hours x \$375/hour = \$750.0 + 10.7 hours x \$270/hour = \$2,889.00]. (Hernando Dec., ¶ 14.) Ms. Hernando declares that she spent five hours preparing for the noticed depositions, 0.7 hours attending the depositions on February 26, 2026 and April 30, 2026, and five hours drafting the joinder and declaration. (*Id.*, ¶ 13.) Kerri Lutfey, the partner handling the case, spent two hours revising the joinder and declaration. (*Ibid.*) Ms. Hernando's hourly rate is \$270.00 and Ms. Lutfey's hourly rate is \$375.00. (*Ibid.*)

The Court imposes \$1,104.00 (2.7 hours x \$270/hr, plus 1.0 hour x \$375) in monetary sanctions against Plaintiff, payable within thirty (30) days of this order. (Code Civ. Proc., § 2025.450, subd. (g)(2).)